



File No.: EXP202311827

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On May 22, 2023, A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent).

The reasons on which the complaint is based are that the complainant is a neighbor of the respondent and that the latter has a series of cameras in their home that, due to their location and orientation, are capable of capturing images of the public road and the complainant's home, without having authorization for this. The complaint mentions four cameras with the following details:

- . One camera located at the window of the respondent's home which, according to the complainant, points directly at the façade of their home and specifically at where the bathrooms are located.
- . Another camera located on the façade of the respondent's property, which due to its height and direction could well capture images of the complainant's property, and surely, of the public road.
- . A lateral camera, which due to its height and direction is capable of capturing images of the public road.
- . A camera located at the back of the left side of the respondent's home, in what appears to be a shed, which points directly at the façade of the complainant's home.

Along with the complaint, the following documentation is provided:

- . An image that, according to the complainant, was shared by the respondent through the messaging application WhatsApp, originating from one of the surveillance system cameras, where the public road and adjacent home are visible.
- . Three images showing the location of cameras on the respondent's property. Two cameras are installed on the exterior wall of the home, one supposed camera located in a window, situated inside the home and oriented outward, and a fourth camera located on the plot where the home is situated. According to the photographs, the home was built within a fenced plot of land.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

On October 4, 2023, a response was received by this Agency indicating that "the image provided by the complainant is false, as the video door phone has not worked for more than 3 years."

With this response, the respondent submitted a "Responsible Declaration" with the following statement:

"I declare under my responsibility that the video door phone installed at the entrance of this home has been inoperative for years and that therefore images cannot be viewed or recorded, and that consequently the images provided by the complainant are false."

Additionally, a screenshot obtained from the complainant's mobile device was provided, showing the actual images captured by the cameras installed on their property (four cameras), as well as an enlarged image of two of those four. According to these screenshots, the area captured by the cameras corresponds entirely to the complainant's plot, except for the image taken by the camera focusing on the access door to that plot, which includes a portion of the public road just above that door. Except for this, the area captured by the cameras is private to the complainant.

THIRD: On November 1, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On August 22, 2024, the Director of the Spanish Agency for Data Protection decided to initiate a warning procedure against the respondent for the alleged infringement of Article 5.1.c) and 13 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on August 23, 2024, as recorded in the acknowledgment of receipt in the file.

SIXTH: On September 4, 2024, a written communication was received from the complainant indicating the following:

"The respondent has a video door phone at the entrance of their house lacking an operational camera and four cameras all focused inward on their property. Indeed, the following elements are available:

A) Camera of the video door phone.

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As recorded in the file, the declarant previously submitted a sworn statement regarding the inoperability of the video intercom for years, and therefore could not and cannot view images; consequently, the photograph provided by the claimant cannot belong to said video intercom, who, in addition, may have allegedly incurred in a criminal offense, as we stated above.

In what is now relevant, since it concerns an inoperative camera, it is evident that it cannot capture any images of individuals, which leads us to understand that data protection legislation does not apply, nor is there any obligation to register with the Agency. It is clear that through this camera, personal data of the claimant or any other person could not have been processed.

B) Four Cameras Installed in Private Area.

As recorded in the file, after being requested at the time by this party, image captures were provided from the screens of the only existing cameras, with the Agency now expressly stating that one of the four cameras was capturing a portion of the public road and that, although it is proportional, it obliges its responsible party to comply with the information duty established in Article 13 of the GDPR and Article 22.4 of the LOPDGDD.

In light of this, it should be stated that the now claimed party, after receiving the first request, proceeded from October 2023 to adjust the camera that was focusing on part of the common areas so that all cameras, without exception, only view, and do not even record, private elements of the declarant, and this exclusively, not reaching any public or community area, even proportionally.

Therefore, we understand that, just like the video intercom, and now for the reason stated, the data protection legislation does not apply to any of the four cameras, nor is there any obligation to register with the Agency. It is also evident and manifest that through these cameras, personal data of the claimant or any other person cannot be processed.

Regarding the camera located in a window, the claimed party states the following:

"Special mention deserves a new fact consisting of a camera that, according to claims, is installed in a window facing outside and appears in one of the photographs of the complaint...."

In light of this, and first of all, it should be noted that according to the Agency itself (first fact of the Agreement now notified), the claimant provided only one photograph, which is exclusively related to the video intercom, in which a person and areas are obscured, said photograph being unrelated to the cameras of this party and which has already been analyzed above.

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However, ex novo, the existence of other photographs that are completely unknown to this party is now asserted, specifically one related to a window facing outward, without further specification, which generates the consequent defenselessness.

In this regard, it is important to remember that when analyzing the possibilities of defense in a procedure, even if it is one of warning, it is necessary to distinguish two major aspects of defenselessness: the right to accusation and the right to defense.

The right to accusation in Article 64.2 of the LPAC includes the right of the accused to be informed of the accusation, a guarantee that is explicitly enshrined in Article 24.2 of the CE, and which arises from

various international instruments and declarations, having been recognized and proclaimed by numerous constitutional and ordinary rulings that have also highlighted the extension of this principle rooted in the criminal field to the administrative sanctioning sphere.

In this sense, it is worth citing the STC 23/2007 of February 12:

"Among the guarantees transferable to the administrative sanctioning procedure, the TC includes [...] the right to know the charges formulated against the accused and the consequent right to the invariability of the essential facts subject to accusation and sanction. It is also required that the charge sheet contain the essential elements of the sanctionable fact and its legal qualification to allow the exercise of the right to defense [...]. Therefore, there can be no implicit or tacit accusation, but the accusation must be formulated expressly and in terms that are not vague or indeterminate, although it is not required that the facts subject to accusation be exhaustively detailed, but it is sufficient that the charge sheet contains the relevant and essential facts to make a legal qualification."

Thus, having established the constitutive elements of the right to accusation, the problems that the case law presents mostly relate to the degree of precision or detail required in the information of the facts, as the issue lies in verifying whether the information provided to the accused complies with the guarantee, that is, in the discussion about whether the description of the data of the accusation must be maximally detailed or if it is sufficient for it to be succinct; the solution will always result from the combination of two concepts: the sufficiency of the information and the absence of defenselessness; in reality, two sides of the same coin.

In this regard, in the notification of the initiation agreement now communicated, the information about the facts is not sufficiently fulfilled since, unless it is a mistake and pertains to another file, the facts have not been effectively reflected, having been provided at the time only one photograph related to the area of the video intercom and now referring to unknown photographs, one of which, it seems, pertains to a camera located in a window, with it being unknown whether it belongs to the residence of the accused or which window is being referred to, which causes confusion and, above all, a great deal of insecurity, violating the reasonable and proportionate level of defense that can be deployed against such an accusation lacking in specificity, and this injury entails a violation of a fundamental right, resulting in absolute nullity of the act that commits it.

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The act of initiation is the instrument that materializes the fundamental right to be informed of the content of the accusation, enshrined in Article 24.2 of the Constitution.

This right ensures that every accused individual has full knowledge of the reasons that have led the competent authority to decide to initiate a procedure aimed at determining their responsibility for the alleged commission of an administrative infraction, as well as the set of procedural rights that correspond to them in such a situation.

It is a fundamental guarantee that derives from the more generic right of defense, to the extent that it is not possible to defend oneself against what is not known (STC 116/2007). This right requires that the accused's knowledge of the accusation against them occurs as soon as possible, as provided by Article 6.3 of the European Convention on Human Rights.

The right to be informed of the accusation implies that the initiation agreement must be the most complete possible manifestation of the assessment carried out by the Administration regarding what it considers a possible infraction, and not a generic reference to a compilation of facts or information contained in a report-proposal that lacks sufficient capacity to rationally substantiate the Administration's suspicions. If the right to be informed of the accusation demands that this information be made known to the accused as soon as possible, its content would be disregarded if the Administration could systematically resort to the exception provided in Article 64.3 of the LPAC, which allows for the legal qualification of the facts to be postponed to a later time through the charge sheet, which, for this reason, must be interpreted restrictively.

Thus, the act of initiation must be a complete administrative decision in all its component elements

and, for this reason, self-sufficient to convey to the accused a concrete and specific accusation, which is closely linked to the requirement of its proper motivation.

If every accused individual in a sanctioning procedure has the right to be informed of the accusation as soon as possible, this right is not satisfied by mere formal or ritual compliance, but must respect a certain and specific content that ensures a thorough understanding of the accusation and allows for the exercise of the right of defense (Alarcón Sotomayor).

In this regard, the LPAC establishes in its Article 64.2.b) that the initiation agreement must include:

"The facts that motivate the initiation of the procedure, their possible qualification, and the sanctions that may correspond, without prejudice to what results from the instruction."

The content of the initiation agreement must be specific in determining the relevant facts attributed to the accused (Nieto García, 2012, p. 500) as well as in the legal interpretation of the same, although they may vary as a consequence of the development of the instruction proceedings of the respective procedure.

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If, as is logical, the information for determining administrative liability may be modified as a result of the development of the instruction, it is true that the right of defense of the accused must imply a significant degree of unalterability of the content of the accusation without prior hearing of the accused. (Gómez Tomillo)

The facts that motivate the initiation must be presented clearly and intelligibly and must be sufficiently accredited. The Administration will not suffice with merely alluding to a relevant fact; it must indicate the means through which it is rationally demonstrable and provide the accused with knowledge of the evidence against them for corresponding debate. The mere mention of relevant facts without them being duly accredited places the accused in a position of defenselessness, as they must practically demonstrate that such a fact did not occur.

The possible qualification of the facts as constitutive of an administrative infraction must be the manifestation of a subsumption judgment, through which the relevant facts selected by the Administration end up fitting into the norm typifying an administrative infraction. It is about exhibiting a reasoning that, starting from the identified and proven relevant facts, can reach a provisional conclusion, certainly, about the commission of an administrative infraction attributable to the accused; that is, a sufficient motivation is required, explaining how the conduct of the accused affected a particular norm (Alarcón Sotomayor).

The contested resolution does not meet this requirement by making a simple reference to certain facts, in abstract, as observed in a photograph that is never conveyed to this party, neither in the prior requirement nor now with the initiation agreement, and such abstract facts cannot configure a presumed infraction, equally abstract, since, regarding an accusation that could have negative consequences for the accused, such accusation must be subjectively identifiable, as required by the principle of culpability, and in this sense, and already for that reason, the contested resolution is null and void.

As the Constitutional Court has repeatedly pointed out (SSTC 12/1981, 105/1983, and 104/1987, ATC 1421/1987, among many others), what is decisive in the application of the accusatory principle is not the defense against a certain qualification, but the defense against certain facts, so that when the interested party has not been able to defend themselves, because they have not fully known from the outset the facts that were imputed to them, their constitutional rights to knowledge of the accusation or defense are violated.....

Notwithstanding the above, and in light of the absolute ignorance of the photograph in question, the truth is that for many years, even long before the first requirement, there has been no camera in any of the windows of the dwelling, neither oriented to the outside nor to the inside, so the photograph referred to is either a transcription error from another file or belongs to another dwelling (we are dealing with a complex of attached houses with identical windows, or it may even be from a time prior

to the entry into force of data protection regulations).

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Be that as it may, what is now relevant is that there was no camera in any window on the date the complaint was filed, nor prior to it, which further indicates the bad faith of the complainant.

Consequently, given that we are dealing with an inoperative camera and four cameras focused on private elements, we understand that the protected interest, the personal data of third parties, has not been violated, and therefore the initiation of the warning file is unfounded due to the inapplicability of the requirements contained in the Data Protection Law, requesting in this regard the definitive filing of the proceedings with the dismissal of the file.

The following principles apply as legal grounds for these facts:

A.- Principle of presumption of innocence, recognized in Article 24 of the Fundamental Norm.

B.- Principle of Efficient Administration, contemplated in Article 103.1 of the same Legal Body.

C.- Principle of access to Justice, determined in Articles 106.1 and 24 of the C.E., which entitles the undersigned to have their appeal considered.

D.- Principle of Legality, also determined in Article 24 of the Supreme Norm, which subjects Public Administrations to act under the rule of Law.

With their written allegations, the responding party provided images from the surveillance cameras installed, confirming that the camera capturing an area of public road has been reoriented so that it only captures the access door and space belonging to their private property.

In light of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts proven in this procedure,

PROVEN FACTS

FIRST: The responding party is the owner of a house built on a fenced plot of land.

SECOND: In the house and plot mentioned in the previous Proven Fact, the responding party has installed a surveillance system that includes four cameras. Three of them are located on the exterior wall of the house and a fourth in the outdoor area, within the fenced plot of land.

THIRD: The area captured by the surveillance cameras installed by the responding party corresponds entirely to their plot of land, within the fenced area, thus being private space, except for a portion of public road captured by the camera directed towards the access door.

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FOURTH: Regarding the area of public road captured by one of the cameras installed by the responding party, they have not justified to this Agency that they have placed a visible informational sign informing interested parties about the existence of monitored space and about the other details provided for in the applicable regulations.

FIFTH: With their written allegations regarding the opening of this warning procedure, the responding party has justified to this AEPD that they have reoriented the camera that focuses on the access door to their property, so that this camera does not capture any space of the public road.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data

Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Response to the allegations of the responding party

The responding party has alleged that the applicable procedural rules have not been respected, as the initiation agreement of the procedure did not contain the precise information to guarantee their right to defense and other principles, such as the presumption of innocence, access to justice, and legality. This AEPD does not share this view and considers that the responding party has been aware at all times of the object of the proceedings, with details of the facts that motivate them and their possible legal qualification. This is evidenced by the very content of the responses made by the complainant during the various proceedings carried out, all of which are completely related to such facts, as well as the actions taken by them upon becoming aware of the complaint, which have allowed for the rectification of the incident noted by this AEPD regarding the capture of public road by one of the surveillance cameras.

III

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The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation.

In Article 4.2 of the GDPR, the concept of "processing" of personal data is defined, indicating:

“‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, combination, restriction, erasure or destruction;”

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (images of individuals) carried out through the reported video surveillance system complies with the provisions established in the GDPR.

IV

Violation of Article 5.1 c) GDPR

Article 5.1 c) GDPR states the following: Personal data shall be:

“adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’).”

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of ensuring the safety of persons and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be “adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed.”

This means that in a specific processing, only the relevant personal data that is appropriate and strictly necessary to fulfill the purpose for which it is processed may be processed. The processing must be adjusted and proportional to the purpose it is directed towards. The relevance in the processing of data

must occur both at the time of data collection and in the subsequent processing carried out on them.

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In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the area of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places can only be carried out by the Security Forces and Corps with prior governmental authorization.

On some occasions, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security.

That is to say, cameras and video cameras installed for security purposes may not obtain images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location. And, in such an extraordinary case, the cameras may only capture the minimum portion necessary to preserve the safety of persons and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, it must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras may not obtain images of private spaces belonging to third parties and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without justified cause is not permitted. Images may also not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the persons present in them.

In this case, the documentation included in the file proves that the complainant has installed a video surveillance camera that captured a public road space, according to the details noted in the proven facts, which constitutes a violation of the aforementioned Article 5.1.c) of the GDPR.

Once the present warning procedure was initiated, the complainant proceeded to reorient the camera so that it no longer captured public road space. However, this does not prevent the indicated violation from being considered consummated.

V

Obligations regarding video surveillance

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In accordance with the above, the processing of images through a video surveillance system, in order to comply with current regulations, must meet the following requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of preserving the safety of individuals and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot be reasonably achieved by other means, considering Recital 39 of the GDPR.

“Personal data should only be processed if the purpose of the processing cannot be reasonably achieved by other means.”

2.- The images obtained cannot be used for a subsequent purpose incompatible with the one that

motivated the installation of the video surveillance system.

3.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, as already indicated.

4.- The images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of individuals, property, or facilities.

In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the moment knowledge of the existence of the recording is obtained.

5.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, dated April 4.

The Spanish Agency for Data Protection provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),

- the Guide on the use of video cameras for security and other purposes,

- the Guide for compliance with the duty to inform (both available in the "Guides and tools" section).

Also of interest, in case of processing low-risk data, is the free tool Facilita (in the "Guides and tools" section), which, through specific questions, allows assessing the situation of the data controller regarding the processing of personal data it carries out, and if applicable, generating various documents, informative and contractual clauses, as well as an annex with minimum considered security measures.

VI

Classification and qualification of the infringement of Article 5.1.c) GDPR

In accordance with the evidence available, it is considered that the facts presented violate the provisions of Article 5.1.c) of the GDPR, constituting an infringement classified under Article 83.5.a) of the GDPR, which states the following:

"Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9."

For the purposes of the statute of limitations for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall prescribe after three years, which constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

VII

Infringement of Article 13 of the GDPR

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, under which:

"1. When personal data relating to a data subject is obtained from that data subject, the data controller shall provide all the information indicated below at the time of obtaining the data:

a) the identity and contact details of the controller and, where applicable, of its representative;

b) the contact details of the data protection officer, where applicable;

c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;

d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;

e) the recipients or categories of recipients of the personal data, where applicable;

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f) where applicable, the intention of the data controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49, paragraph 1, second sentence, reference to the appropriate or suitable safeguards and the means to obtain a copy of these or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time when the personal data are obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the data controller access to personal data concerning the data subject, and their rectification or erasure, or the restriction of processing, or to object to processing, as well as the right to data portability;
- c) when the processing is based on Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and has been informed of the possible consequences of not providing such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, significant information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to process personal data for a purpose other than that for which they were collected, they shall provide the data subject, prior to such further processing, information about that other purpose and any additional relevant information in accordance with paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

Regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video systems for the purpose of ensuring the safety of persons and property, as well as their facilities.

Article 12.1 of the GDPR indicates that anyone carrying out the processing of personal data, such as capturing images through a video surveillance system, must provide the data subjects with the information indicated in Articles 13 and 14 of the GDPR.

In order for the information duty provided for in Article 12 of the GDPR to be fulfilled in a concise and understandable manner for the affected party, the aforementioned Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

In this regard, the first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a website, and must refer to the remaining elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment.

This information duty will be considered fulfilled by placing an informational device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether interior or exterior. If the monitored space has several entrances, the distinguishing sign of the monitored area must be placed at each of them.

This information must be provided in advance - Recital 39 of the GDPR. The objective is to make the context of the surveillance clear.

In this case, the analysis of the images from the field of view of the cameras of the video surveillance system has confirmed that one of the cameras captured a portion of public road, which, according to the claimant, as the responsible party for the installed system, was obliged to comply with the information duty established in Article 13 of the GDPR and in Article 22.4 of the LOPDGDD, by installing the required informational sign.

VII

Classification and qualification of the infringement of Article 13 of the GDPR

In accordance with the available evidence, it is considered that the respondent has violated the provisions of Article 13 of the GDPR.

Article 83.5 b) states that “the infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount: a) (...)

b) the rights of the data subjects pursuant to Articles 12 to 22;” (...)

For the purposes of the statute of limitations for infringements, Article 72.1 h) of the LOPDGDD classifies as very serious “The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this Organic Law.”

The statute of limitations for very serious infringements provided for in the LOPDGDD is three years.

VIII

Warning

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2.b) of Article 58 “Powers” the following:

“Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) issue a warning to any data controller or processor when the processing operations have infringed the provisions of this Regulation;

(...)”

Furthermore, Article 64 of the LOPDGDD, which regulates the “Form of initiation of the procedure and duration,” states in its third paragraph that:

“3. When appropriate, taking into account the nature of the facts and duly considering the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Data Protection Agency, after hearing the data controller or processor, may issue a warning, as well as order the data controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specified manner and within the specified timeframe.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After that period, it will expire, and consequently, the file of actions will occur.

The provisions of the second and third paragraphs of paragraph 2 of this article shall apply in this case.”

In this case, given the circumstances present in this procedure, it is deemed appropriate to issue a warning to the respondent for the infringements of Articles 5.1.c) and 13 of the GDPR.

IX

Adoption of measures

In accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, each supervisory authority may “order the data controller or processor to ensure that the processing operations comply

with the provisions of this Regulation, when appropriate, in a specified manner and within a specified timeframe...”.

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In the present case, once the initiation of this procedure was known, the respondent has proceeded to reorient the surveillance camera that caused the infringements, avoiding capturing space from the public road. Therefore, the imposition of additional measures is not warranted in this case.

Consequently, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ISSUE A WARNING to B.B.B., with NIF ***NIF.1, for an infringement of Articles 5.1(c) and 13 of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3(a) of the LPACAP, the final resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension concluded.

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Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

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